

NY.3 Inspection Sequence

The eleven inspection elements the state rule requires, the two that come from people you hire, the 30-day clock on an order to remedy, the appeal you have, and the certificate of occupancy.

Before you use this document

This is a process reference, not legal advice. New York adopts one Uniform Code for every parcel in the state outside New York City and then lets your permit office be one of three governments: your town, village or city; your county; or the Department of State. The code itself never lapses, so the question that dominates most states in this series — will anyone inspect this house? — has a statutory answer here. What does vary: the fee, the local law's exemption list, the electrical inspection agency your office has approved, and the frost, snow and wind numbers it has written into Table R301.2. Confirm every item with the office that will actually handle your parcel before you rely on it. Part 1203 is the floor. Your office's local law may add inspections and fixes its own scheduling practice; no state rule says how quickly an inspector must come.

THE FLOOR — ELEVEN ELEMENTS, IN EVERY PROGRAM

Every code enforcement program — town, county or Department of State — must provide for at least these. This is the whole of the list, quoted, with the rule's own qualifier: “where applicable.”

19 NYCRR § 1203.3(b)(1) — inspections “shall include but not be limited to the following elements of the construction process”

“(i) **worksite prior to the issuance of a permit**; (ii) **footing and foundation**; (iii) **preparation for concrete slab**; (iv) **framing**; (v) structural, **electrical**, plumbing, mechanical, fire-protection, and other similar service systems of the building; (vi) fire resistant construction; (vii) fire resistant penetrations; (viii) **solid fuel-burning heating appliances, chimneys, flues, or gas vents**;

(ix) inspections required to demonstrate **Energy Code compliance**, including but not limited to insulation, fenestration, **air leakage**, system controls, mechanical equipment size, and, where required, minimum fan efficiencies, programmable thermostats, energy recovery, whole-house ventilation, plumbing heat traps, high-performance lighting, and controls; (x) installation, connection, and assembly of factory manufactured buildings and manufactured homes; and (xi) **a final inspection after all work authorized by the building permit has been completed.**”

*Rule text adopted 29 December 2021, effective 30 December 2022, read from the Department of State's own PDF. The same paragraph allows **remote inspections** “when, at the discretion of the authority having jurisdiction, the remote inspection can be performed to the same level and quality as an in-person inspection.”*

Note element (i): a **site visit before the permit issues**, which most states do not have — do not be surprised when the officer wants to walk the lot before signing. Your office's list will usually be longer than eleven; ask for it and write the extras on the log at the end.

Your duties and the inspector's

	The rule	Authority
Keep it open	Work “shall remain accessible and exposed until inspected and accepted by the authority having jurisdiction.” Close a wall before the framing visit and you open it again.	19 NYCRR § 1203.3(b)(2); [NY] R109.1
You call it in	The permit holder must “notify the authority having jurisdiction when construction work is ready for inspection.” Nobody comes unbidden.	19 NYCRR § 1203.3(b)(2); [NY] R109.3
A failure must cite the section	After each inspection the office “shall note the work ... to be satisfactory as completed, or the building permit holder shall be notified as to the manner in which the work fails to comply ... including a citation to the specific code provision or provisions that have not been met. ” Non-compliant work stays exposed until re-inspected. If you are failed without a section number, ask for one — the rule entitles you to it.	19 NYCRR § 1203.3(b)(3)

How fast must they come? No state rule says. Part 1203 sets no response time; the local law or the office's practice governs. If the answer is a long wait, the Part 1205 appeal below reaches “the failure ... to make an order or determination within a reasonable amount of time.”

ELECTRICAL — A SPECIAL INSPECTION ON THE AGENCY'S CERTIFICATES

The code book says new electrical work “shall be inspected by the building official” (2025 RCNYS E3403.2). The rule sitting above the book decides who that is in practice, and it is the New York trap.

19 NYCRR § 1203.2(e)(4) — special inspections

“‘Special inspections’ (as defined in the Uniform Code), including but not limited to, **electrical inspections**, elevator inspections, welding inspections, and smoke control system inspections are not considered to be building safety inspector enforcement activities or code enforcement official enforcement activities ... However, an authority having jurisdiction **shall not accept or rely upon a special inspection unless the person performing such special inspection (i) is a qualified person employed or retained by an agency that has been approved by the authority having jurisdiction and (ii) has been approved by the authority having jurisdiction** as having the competence necessary to inspect a particular type of construction requiring such special inspection.”

What it means on the ground. Most New York building departments employ no electrical inspector. They accept rough-in and final certificates from third-party electrical inspection agencies — but only from agencies **they** have approved, and there is no state list. You cannot pick any inspector. The certificate of occupancy then waits on the office having “received and reviewed ... a **final report of special inspections**” (19 NYCRR § 1203.3(d)(2)(ii)). The agency's final certificate is that report; make sure it reaches the office, not just your file. It is the one part of a New York inspection you engage and pay directly — an office may contract its other inspections to a private firm (§ 1203.2(e)), but the permit still issues from the municipality.

The electrical track — the four documents that must exist

	Item	Date	Notes
☐	Approved-agency list obtained from the office, and the agency I engaged: Agency _____		
☐	Rough-in certificate issued, before any wiring is covered: Date _____ Certificate no. _____		
☐	Final certificate issued, after fixtures and the service are complete: Date _____ Certificate no. _____		
☐	Final report of special inspections delivered to the permit office — confirmed received: Date _____ By whom _____		

ENERGY — THE INSPECTION, THE TEST AND THE WRITTEN RESULT

Element (ix) above is not one visit. The insulation is inspected before the wall closes, the blower door happens when the envelope is complete, and the written test result is a document the certificate of occupancy depends on.

Three energy items, in the order they happen

Item	The rule	Authority
Insulation, open-wall	Components installed per Table R402.5.1.1; “where required by the building official, an approved third party shall inspect all components,” with “an open wall visual inspection.” No more than 2% of the insulated area may contain gaps, voids or compression. Do not hang drywall before this is signed off.	2025 ECCCNY [NY] R402.5.1.1

Three energy items, in the order they happen

Item	The rule	Authority
The blower door, and its report	Mandatory. “The building or each dwelling unit ... shall be tested for air leakage ... Where required by the building official, testing shall be conducted by an approved third party. A written report ... shall be ... provided to the building official. ” Limit 3.0 ACH in Zones 4–5, 2.5 ACH in Zone 6 (NY.2 has your county's zone). No CO until the office has “received and reviewed each written statement of the results of tests performed to show compliance with the Energy Code” — get the report to the office the day you get it.	2025 ECCCNY [NY] R402.5.1.2, .3; 19 NYCRR § 1203.3(d)(2)(iv)
The posted certificate	A permanent certificate at the furnace or utility room listing R-values, U-factors, the blower-door and any duct-test results, equipment efficiencies, and “the code edition under which the structure was permitted, the compliance path used.” The final inspector will look for it.	2025 ECCCNY R401.3

STOP WORK, ORDER TO REMEDY, AND THE \$1,000-A-DAY CLOCK

New York fixes the one enforcement clock most states leave open, and names the owner in the penalty section.

The three pieces of paper, and what each one starts

	What the rule says	Authority
Stop work order	Issued for work “contrary to provisions of either or both of the Codes, is being conducted in a dangerous or unsafe manner, is being performed without obtaining a required building permit, or when a building permit has been issued in error.” It “shall state the reason for its issuance and the conditions which must be satisfied before work will be allowed to resume.”	19 NYCRR § 1203.3(c)
Order to remedy — 30 days	“The time within which a person or entity served with an order to remedy is required to comply with such order to remedy is hereby fixed at 30 days following the date of such order.” Served personally or by certified or registered mail within five days of the order; a mailed order is deemed served on the mailing date. The office may require corrective action to begin immediately, or vacating or barricading while it proceeds.	19 NYCRR § 1203.5(c), (e), (f)

The three pieces of paper, and what each one starts

	What the rule says	Authority
The penalty	Failing to comply with an order to remedy, or knowingly violating the Uniform Code as “any owner, builder, architect, tenant, contractor, subcontractor, construction superintendent or their agents or any other person taking part or assisting in the construction of any building,” is “punishable by a fine of not more than one thousand dollars per day of violation , or imprisonment not exceeding one year, or both.” A court “may order the removal of the building or an abatement of the condition.” The office may also issue appearance tickets.	Exec. Law § 382(1)–(3)

*The 30-day figure is the time the Executive Law says must be “stated in the order” (§ 382(2)); Part 1203 fixes it statewide so no office can shorten it. Missing the 30 days is what converts a correctable violation into the per-day exposure — **if you cannot finish in 30 days, ask in writing for more time before day 30, not after.***

THE APPEAL YOU HAVE — A REGIONAL BOARD OF REVIEW, DECIDED IN 60 DAYS

This is the page Pennsylvania's opt-out towns do not have. New York gives every permit applicant a statutory forum above the code official, and the code book says so in its own administrative chapter.

The right, and the procedure

2025 RCNYS [NY] R112.1: “An appeal of any order or determination, **or the failure within a reasonable time to make an order or determination**, of an administrative official charged to enforce or purporting to enforce the Uniform Code may be made in accordance with the provisions of Part 1205.”

19 NYCRR § 1205.3(a)(2): “Each regional board of review shall have the power to hear and decide appeals. An appeal may be of any order or determination, relating directly to the provisions of the Uniform Code, of an administrative official authorized to enforce the Uniform Code, or the failure of an administrative official to make such an order or determination within a reasonable amount of time.” Remedies include “sustaining, reversing, or modifying” the order, or “directing that any orders, determinations, permits, or authorizations be issued.”

How: “Any person aggrieved may petition the regional board of review for an appeal” (§ 1205.4(b)), on a Department of State form with the fee set by § 1205.6 (amount not printed here — start at dos.ny.gov/code/variances). **When:** “Petitions shall be decided within **60 days** of completeness unless a longer period is required for good cause shown” (§ 1205.4(e)). DOS's 2026 guide describes six regional boards of five members each — an architect, an engineer, a code-enforcement background, a fire background, and a businessperson or lawyer.

Two things Part 1205 is not. It is not a way to get a local official to bend the code: a building official may not “waive, vary, modify, or otherwise alter” any provision ([NY] R104.2.2), and a **variance** from the code itself is a separate Part 1205 petition to DOS, also on a 60-day clock (Exec. Law § 381(1)(f)). And it is not the place for a complaint about an official's conduct rather than a decision — that goes to DOS on its code enforcement official complaint form at dos.ny.gov/code/complaints.

THE CERTIFICATE OF OCCUPANCY

Permission to occupy “shall be granted only by issuance of a certificate of occupancy or a certificate of compliance” (19 NYCRR § 1203.3(d)(1)), and the code says the same: no occupancy without a CO where the local program requires one ([NY] R110.1). The rule then lists what the office must hold before it may sign — and **two of the five come from people you hired**, which is why an owner-builder's CO most often stalls on paperwork rather than on the house.

Five things the office must have before the CO — 19 NYCRR § 1203.3(d)(2)

	Precondition	Cite
1	Inspected the work and found it in compliance with the codes.	§ 1203.3(d)(2)(i)
2	Where applicable, received and reviewed each written statement of structural observations and the final report of special inspections — your electrical agency's final certificate.	§ 1203.3(d)(2)(ii)
3	Where applicable, received and reviewed the flood hazard certifications — an elevation certificate if you built in a flood zone, which in New York includes shaded X.	§ 1203.3(d)(2)(iii)
4	Where applicable, received and reviewed each written statement of Energy Code test results — the blower-door report.	§ 1203.3(d)(2)(iv)
5	Where applicable, verified the seals and data plates on any factory-built component or manufactured home.	§ 1203.3(d)(2)(v)

What the CO says, the temporary CO, and after

Contents (§ 1203.3(d)(3)): the permit number and date, the address and **tax map number**, the portion covered, the use and occupancy classification, construction type, “any special conditions imposed in connection with the issuance of the building permit,” the signature and the issue date. Keep it with the deed.

Temporary CO (§ 1203.3(d)(4)): allowed before completion, “limited to a specified period of time,” and only once the structure “may be occupied safely,” the fire, smoke, CO and heat detection is “installed and operational,” and “all required means of egress ... have been provided.” A CO issued in error is suspended or revoked if the deficiency is not corrected within a specified period (§ 1203.3(d)(5)). **No rule sets a number of days for issuing a CO.**

Afterwards: no rule may require “regular, periodic inspections of ... owner-occupied one and two-family dwellings” (Exec. Law § 381(1)), and when you sell, an affidavit of smoke-alarm compliance is delivered at conveyance, with the buyer having ten days to object (Exec. Law § 378(5-b)).

INSPECTION LOG — RECORD EVERY ONE

Every visit, whoever performed it

	Item	Date	Notes
☐	Pre-permit worksite visit, element (i). Date _____ Inspector _____ Result _____		
☐	Footing and foundation — forms and steel before concrete, at the frost depth in the office's Table R301.2; walls, damp-proofing and drainage before backfill. Date _____ Inspector _____ Result _____		
☐	Slab preparation — base, vapor retarder, slab insulation (R-10ci, 4 ft), before the pour. Date _____ Inspector _____ Result _____		
☐	Electrical rough-in — the approved agency's certificate. Date _____ Agency _____ Cert. no. _____		
☐	Plumbing and mechanical rough-in , before concealment. Date _____ Inspector _____ Result _____		

Every visit, whoever performed it

	Item	Date	Notes
☐	Framing — with braced walls per the approved drawings, fire-resistant construction and penetrations, and the chimney or flue if any. Date _____ Inspector _____ Result _____		
☐	Insulation, open-wall — before drywall. Date _____ Inspector _____ Result _____		
☐	Solid-fuel appliance — separate permit and certificate of compliance before it is operated ([NY] R115). Date _____ Inspector _____ Cert. _____		
☐	Blower door — written report delivered to the office. Limit 3.0 ACH (Zones 4-5) or 2.5 ACH (Zone 6). Date _____ Result ACH _____ Report sent _____		
☐	Electrical final — the agency's final certificate, delivered to the office as the final report of special inspections. Date _____ Agency _____ Cert. no. _____		
☐	Final building inspection — after all permitted work is complete; R401.3 certificate posted. Date _____ Inspector _____ Result _____		
☐	Certificate of occupancy issued. Date _____ Number _____		

Every visit, whoever performed it

	Item	Date	Notes
☐	Any inspection my office requires that is not on this list — ask, and write it here: Inspection _____ Date _____		

Sources — every New York claim in this document (verified September 2026)

What this document states	Authority
The eleven inspection elements; remote inspections	19 NYCRR § 1203.3(b)(1)
Work stays exposed; permit holder notifies; failure must cite the section	19 NYCRR § 1203.3(b)(2), (3); 2025 RCNYS [NY] R109.1, R109.3
Electrical inspections are special inspections; approved agency only; contracted enforcement acts for the office	19 NYCRR § 1203.2(e), (e)(4); 2025 RCNYS E3403.2
Insulation inspection; mandatory air-leakage test; written report; posted certificate	2025 ECCCNY [NY] R402.5.1.1-.3; R401.3
Stop work orders; order to remedy: 30 days; service; begin immediately	19 NYCRR §§ 1203.3(c), 1203.5(c), (e), (f)
\$1,000 per day; “any owner, builder”; removal or abatement	Exec. Law § 382(1)–(3)
Appeal of any order, determination or inaction; petition with fee; decided within 60 days	2025 RCNYS [NY] R112.1; 19 NYCRR §§ 1205.3(a)(2), 1205.4(b), (e), 1205.6
No local official may waive or vary; variances go to DOS	2025 RCNYS [NY] R104.2.2; Exec. Law § 381(1)(f)
Occupancy only by CO; five preconditions; contents; temporary CO; revocation	19 NYCRR § 1203.3(d)(1)–(5); 2025 RCNYS [NY] R110.1
No periodic inspection of owner-occupied dwellings; smoke-alarm affidavit at conveyance	Exec. Law §§ 381(1), 378(5-b)

Everything cited here is free to read, in three places. Statutes are at nysenate.gov/legislation/laws/EXC/381 — swap **EXC** for **GMU, WKC, EDN, GBS, LIE** or **LAB** and the number for the section. The rules (19 NYCRR Parts 1202, 1203, 1205, 1219–1229, 1240) are the Department of State's own rule-text PDFs at dos.ny.gov. The 2025 code books are free at codes.iccsafe.org/content/NYSRC2025P1 (residential) and [NYSECC2025P1](https://codes.iccsafe.org/content/NYSECC2025P1) (energy). **One warning:** the code is the regulation plus the book, and Westlaw's NYCRR still showed the 2020 edition for Parts 1219–1229 nine months after the 2025 rule took effect — read the DOS PDFs, not Westlaw. Read September 2026.